

opposition to the motion to transfer and consolidate their San Bernardino action with the San Diego action,” and it made no difference that they referred to themselves as “Specially Appearing Defendants.”].)

Here, on 11/27/24, Plaintiffs filed a motion to consolidate this action with the action *Donna Augustini v. Chris Kappes, et al.*, Case No. 30 2024-01430705-CU-FR-CJC (the "*Augustini Action*") for all purposes. Plaintiff Donna Augustini in the Augustini Action filed opposing papers to the motion in that action, Case No. 30- 2024-01430705. In that Opposition, she stated that she filed her opposition in the *Augustini Action* in order: (a) to avoid any claim that she has appeared or otherwise submitted to the court’s jurisdiction in the *Kappes Action*; and (b) to avoid having to pay a first appearance fee in the *Kappes Action* as a condition to opposing the motion. (See Augustini Decl., ¶ 11, Exh. H.) The act of filing the Opposition in the *Augustini Action* was improper, regardless of the reason. (See Cal. Rules of Ct., rule 3.350(a) [memorandums must be filed in lowest number case].)

The motion was denied without prejudice on 8/22/25 as being premature. Thereafter, on 3/2/26 at an OSC re sanctions for failure to serve and prosecute (both Mr. Verdun and Mr. Augustini were present), the court ordered the *Kappes Action* and the *Augustini Action* consolidated for all purposes. The court designated *Kappes vs. Augustin* 30-2024-01430382 as the lead case and ordered that further documents must be filed under the case number and caption of the lead case. (See 3/2/26 Order [ROA 58].)

On 6/2/26, the Plaintiffs submitted a proof of service of summons stating that Donna Augustini was served via her counsel of record, Mr. Augustini, and that Donna Augustin had appeared in the action. (ROA 63.)

Defendant Ms. Augustini now brings this motion to quash, arguing that electronic service to her counsel is improper service of the summons and complaint.

In response, Plaintiffs argue that Donna Augustini has generally appeared in this action, because she appeared in the *Augustini v. Kappes* action and those two actions have

been consolidated for all purposes. Plaintiffs argue that because she filed a complaint in *Augustini*, filed a demurrer to Defendants' amended answer in *Augustini*, and filed numerous discovery motions in *Augustini*, the consolidation of those actions now entails that she has appeared in this matter. Plaintiffs rely on *Hamilton* in support of their contention.

In her Reply, Ms. Augustini argues that this matter is distinguishable from *Hamilton* because unlike the defendant in *Hamilton*, Ms. Augustini has been repeatedly contesting jurisdiction in the *Kappes* matter, even going to so far as to file her Opposition to the motion to consolidate in the *Augustini* matter, and not the *Kappes* matter, for the express purpose of not submitting to this court's jurisdiction. In *Hamilton*, the defendant challenging jurisdiction had "fully participated in this consolidated action from beginning to end" and made no objection to the motion to consolidate. (*Id.* at 1149.)

The court finds Ms. Augustini's actions constitute a general appearance. Ms. Augustini opposed the motion to consolidate on substantive grounds. For example, she argued that the Kappes filed their complaint before mediation in violation of the lease agreement between the parties. (See Augustini Decl., Exh. 8.) Further, on 9/3/25, Plaintiffs filed a motion for sanctions against Rick Augustini in the *Kappes Action* arising out of a "response" that Augustini filed to a court order that was issued in the *Kappes Action*. (See Augustini Decl., Exh. L). Ms. Augustini opposed this motion on substantive grounds as well. (*Id.*) By way of Ms. Augustini's oppositions, her complaint and other filings in the *Augustini Action*, which have now been consolidated with this action (including numerous discovery motions), the court finds that Ms. Augustini has made a general appearance.

The court notes that Ms. Augustini contends, for the first time in her Reply Brief, that this court's 3/2/26 ruling consolidating both actions was improper due to lack of notice. Notably, Mr. Augustini was present at the 3/2/26 hearing when the court stated it was inclined to consolidate the matters for all purposes and the parties

discussed such. (See 3/2/26 Minute Order; Augustini Decl., ¶ 20; Verdun Decl., ¶ 4.)

Finally, Ms. Augustini argues that service is improper because her counsel (Mr. Augustini) was served a copy of the original summons with the First Amended Complaint. Plaintiffs do not deny serving a copy of the original summons but contend that an amended summons is not required unless a new party has been added. Plaintiffs rely upon Section 412.10 of the Code of Civil Procedure, which states,

“After payment of all applicable fees, the plaintiff may have the clerk issue one or more summons for any defendant. The clerk shall keep each original summons in the court records and provide a copy of each summons issued to the plaintiff who requested issuance of the summons.”

Plaintiffs also cite to *Gillette v. Burbank Community Hospital* (1976) 56 Cal.App.3d 430, 433, wherein the court held,

“In the absence of new and different parties named in an amended complaint defendants offer no logical reason why a new summons must issue on an amended complaint. No one claims to have been misled by the summons served here.”

Plaintiffs do not raise the argument of whether service of summons is even required if Ms. Augustini makes a general appearance. (See Code Civ. Proc., § 410.50(a).)

The court finds nothing improper from Plaintiffs’ service of the original summons and First Amended Complaint.

In sum, the motion is DENIED.

Ms. Augustini is ORDERED to file and serve a response to the First Amended Complaint no later than October 2, 2026.

Plaintiffs to give notice.

		2. Status Conference The court set this status conference to determine whether the matter is at-issue. (See 3/2/26 Minute Order.) The matter is still not at-issue. As such, the court CONTINUES the Status Conference to 10/16/26 at 9:30 am, the date and time currently set for hearing Rick Augustini’s motion to quash (ROA 76). Trial remains set for 5/24/27. Plaintiffs to give notice.
16	Kim vs. Mercedes-Benz USA, LLC	<u>Motion to Compel Arbitration</u> The court GRANTS Defendant MERCEDES-BENZ USA, LLC’s motion to compel arbitration against Plaintiff JAMES KIM. Both the Federal Arbitration Act (“FAA”) and the California Arbitration Act (“CAA”) require the existence of a valid arbitration agreement, before arbitration can be compelled. (See 9 U.S.C. §2 and Code Civ. Proc., §1281.2.) Under either authority, the moving party bears the burden of proving the existence of an applicable agreement and the party opposing arbitration bears the burden of proving any defense. (<i>Engalla v. Permanente Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972 [re CAA]; See also <i>Ashbey v. Archstone Property Management, Inc.</i> (9th Cir. 2015) 785 F.3d 1320, 1323 and <i>Installit, Inc. v. Carpenters 46 Northern California Counties Conference Board</i> (N.D. Cal. 2016) 214 F.Supp.3d 855, 859 [re FAA].) Regardless of whether the FAA applies, “we apply general California contract law to determine whether the parties formed a valid agreement to arbitrate their dispute.” (<i>Avery v. Integrated Healthcare Holdings, Inc.</i> (2013) 218 Cal.App.4th 50, 59-60.)

To establish an applicable arbitration agreement, Defendant proffers a “California Motor Vehicle Lease Agreement”. (Newman Decl., ¶ 4, Exh. C.) The document indicates it was entered into between House of Imports and James Chang Kim, with an electronic signature appearing in the name of the latter. (Ibid.)

Plaintiff objects to the portion of Counsel’s declaration which purports to attach the parties’ arbitration agreement. The court finds the offered attachment is sufficient to meet moving Defendant’s initial burden. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) “For this step, ‘it is not necessary to follow the normal procedures of document authentication.” (Ibid.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (*Gamboa*, 72 Cal.App.5th at 165.) “If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties.” (Ibid.)

To dispute the above agreement, Plaintiff states in conclusory fashion, “I have never agreed to arbitrate the claims alleged in my pending lawsuit against Defendant. At no time have I elected to do so. I have never seen and do not recall signing any agreement to arbitrate the claims that I have asserted against the Defendant. If I had been offered the option to sign such an agreement, I would have refused to do so.” (Kim Decl., ¶ 3.)

The court finds the above insufficient to dispute Plaintiff’s execution of the Lease Agreement.

While a declaration which states the applicable agreement was not executed by the plaintiff, or which states the plaintiff does not recall executing the agreement has been

found sufficient to shift the burden of proof back to a moving defendant (See *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 546-547 and *Fabian v. Renovate America, Inc.* (2019) 42 Cal.App.5th 1062, 1065), Plaintiff here does not expressly disclaim having signed the relevant Lease Agreement nor does disclaim any memory of signing the Lease Agreement. This failure is glaring, given that Plaintiff acknowledges the existence of the Lease Agreement and describes the circumstances of its execution. (Kim Decl., ¶ 4.)

Based on the above, Plaintiff did not sufficiently challenge the Lease Agreement and, consequently, Defendant was not required to provide admissible evidence authenticating Plaintiff's signature. Defendant has sufficiently established the existence of an agreement.

The arbitration provision broadly states,

“Any claim or dispute whether in contract, tort or otherwise (including any dispute over the interpretation, scope, or validity of this lease, arbitration section or the arbitrability of any issue), between you and us or any of our employees, agents, successor, assigns, or the vehicle distributor, ***including Mercedes-Benz USA LLC*** (each a ‘Third Party Beneficiary’), ***which arises out of or relates to a credit application, this lease, or any resulting transaction or relationship arising out of this lease*** (including any such relationship with third parties who do not sign this contract) shall, at the election of either you, us, or a Third Party Beneficiary, ***be resolved by a neutral binding arbitration and not by a court action.***” (Newman Decl., ¶ 4, Exh. C, emphasis supplied.)

The above provision is broad and applies to the statutory claims at issue herein. (See *Rice v. Downs* (2016) 248 Cal.App.4th 175, 186, as modified on denial of reh'g (June 23, 2016), as modified (June 28, 2016) [holding that examples of “broad” clauses include “any claim arising from or related to this agreement” and are sufficiently broad to include torts and claims where the allegations “touch matters” covered by the contract].)

The court finds that Defendant MBUSA is entitled to enforce the agreement.

As argued by Plaintiffs, equitable estoppel does not apply to permit MBUSA to compel arbitration, as “[t]he warranties upon which plaintiffs’ claims rest are independent of the sales contracts, not intimately intertwined with them.” (*Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1135.) However, “[a] third party beneficiary is someone who may enforce a contract because the contract is made expressly for his benefit.” (*Ford Motor Warranty Cases*, 89 Cal.App.5th at 1336 [internal quotations omitted].)

In determining whether the third party beneficiary doctrine applies, the court considers: “(1) whether the third party would in fact benefit from the contract, but also (2) whether a motivating purpose of the contracting parties was to provide a benefit to the third party, and (3) whether permitting a third party to bring its own breach of contract action against a contracting party is consistent with the objectives of the contract and the reasonable expectations of the contracting parties.” (*Goonewardene v. ADP, LLC* (2019) 6 Cal.5th 817, 830.) “All three elements must be satisfied to permit the third party action to go forward.” (*Ibid.*)

In disputing application of the third-party beneficiary doctrine, Plaintiff relies heavily on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122; however, this authority did not consider application of third-party beneficiary status.

Additionally, in contrast to the contractual language at issue in *Ford Motor Warranty Cases*, the arbitration provision states that MBUSA is a third-party beneficiary and that third-party beneficiaries may enforce the arbitration provision. (Newman Decl., ¶ 4, Exh. C.)

By expressly designating Mercedes-Benz USA, LLC as a third-party beneficiary entitled to enforce the arbitration provision, the Lease Agreement clearly benefits and communicates an intent to benefit, the moving Defendant. Similarly, applying the above herein, permitting Mercedes-Benz USA, LLC to enforce the arbitration provisions is

consistent with the objectives of the contract and the reasonable expectations of the parties.

Based on the above, all the *Goonewardene* elements are met. (*Goonewardene*, 6 Cal.5th at 830.)

As explained by the court in *Ford Motor Warranty Cases*: “If the signatories had intended to benefit FMC, such a purpose would have been easy to articulate. They could have simply named FMC – directly or by class as the vehicle’s manufacturer – as a person entitled to compel arbitration.” (17 Cal.5th 1339.) Here, an intent to permit enforcement by moving Defendant as a third-party beneficiary was specifically communicated.

Based on the above, the court finds that Defendant is entitled to enforce the arbitration provision within the Lease Agreement, as a third-party beneficiary.

Next, the court finds that Plaintiff failed to establish any defense to enforcement.

“To establish waiver under generally applicable contract law, the party opposing enforcement of a contractual agreement must prove by clear and convincing evidence that the waiving party knew of the contractual right and intentionally relinquished or abandoned it.” (*Quach v. California Commerce Club, Inc.* (2024) 16 Cal.5th 562, 584.) “Its intentional relinquishment or abandonment of the right may be proved by evidence of words expressing an intent to relinquish the right or of conduct that is so inconsistent with an intent to enforce the contractual right as to lead a reasonable fact finder to conclude that the party had abandoned it.” (*Ibid.*)

Plaintiff asserts that Defendant delayed in filing this Motion to Compel Arbitration; however, this Motion to Compel Arbitration was Defendant’s first filing within this action and, moreover, the motion was filed approximately one-month after Defendant was personally served the Complaint. (See ROA Nos. 10 and 17.) Based on the above, there has been no delay.

Plaintiff additionally references the fact that, on 8/7/26 (after this motion was filed), “Defendant served its initial disclosures and document production consistent with the parties’ obligations under CCP Section 871.26.” (Opp’n Br. at p. 4, lines 3-6.) The inclusion of this fact within this portion of the opposition suggests that Plaintiff is relying on the disclosure to establish waiver; however, the disclosure occurred after Defendant filed this motion and put Plaintiff on notice of its intent to compel arbitration. (See Pascal Decl., ¶6.)

Plaintiff cites no authority indicating compliance with Code of Civil Procedure section 871.26 is contrary to an intent to arbitrate. The intent of Code of Civil Procedures section 871.26 appears to be to facilitate statutorily required mediation, by requiring certain immediate disclosures.

Plaintiff has offered no explanation as to how compliance with a statute intended to facilitate mediation, is contrary to an intent to compel contractual arbitration.

For similar reasons, Plaintiff’s attempt to invoke judicial estoppel fails. Plaintiff briefly asserts that Defendant should be judicially estopped from enforcing arbitration, on the basis arbitration conflicts with Defendant having opted in to the framework of Code of Civil Procedure section 871. (See Opp’n Br. at p. 4, lines 7-20; Pascal Decl., ¶ 3.)

Judicial estoppel applies when: “(1) the same party has taken two positions; (2) the positions were taken in judicial or quasi-judicial administrative proceedings; (3) the party was successful in asserting the first position (i.e., the tribunal adopted the position or accepted it as true); (4) the two positions are totally inconsistent; and (5) the first position was not taken as a result of ignorance, fraud, or mistake.” (*Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 183.)

Here, Defendant has not made any clear representations regarding Code of Civil Procedure section 871 et. seq. before this Court, nor has Plaintiff established any such representations within any other “judicial or quasi judicial administrative proceedings.” (*Jackson*, 60 Cal.App.4th at

183.) Additionally, even if Defendant's decision to opt into the statutory framework with the California Department of Consumer Affairs qualifies, Plaintiff has not demonstrated that this act is inconsistent with compelling arbitration.

Finally, while the court finds the Lease Agreement was adhesive, such as to establish a modest amount of procedural unconscionability (See Kim Decl., ¶ 4 and *Nguyen v. Applied Medical Resources Corp.* (2016) 4 Cal.App.5th 232, 248), Plaintiff has not shown substantive unconscionability to avoid enforcement. (*Parada v. Superior Court* (2009) 176 Cal.App.4th 1554, 1570.)

"A provision is substantively unconscionable if it involves contract terms that are so one-sided as to shock the conscience, or that impose harsh or oppressive terms." (*Parada*, 176 Cal.App.4th at 1573 [internal quotations omitted.])

Initially, Plaintiff's suggestion that substantive unconscionability attaches by necessity, when a third-party beneficiary is permitted to enforce an arbitration agreement, is unpersuasive. (See Opp'n Br. at p. 13, line 20 to p. 14, line 20.) While Plaintiff suggests that third-party beneficiary enforcement results in a one-sided agreement, he cites no authority that supports this position.

By contrast, the general rule is that when a party "seeks to secure the benefits under a contract as to which he is a third-party beneficiary, he must take the contract as he finds it...[t]he third party cannot select the parts favorable to him and reject those unfavorable to him." (*Souza v. Westlands Water Dist.* (2006) 135 Cal.App.4th 879, 895.)

Based on the above, the terms within the Lease Agreement are mutual and Defendant MBUSA is equally bound thereto.

Similarly unpersuasive is Plaintiff's assertion the arbitration provision is one-sided in practice, as it will most likely affect consumer claims. (See Opp'n Br. at p. 14, lines 1-10.) Here, the Lease Agreement clearly requires arbitration of "[a]ny claim or dispute" arising from the relationship established by the lease. (Newman Decl., ¶ 4, Exh. C.)

Next, Plaintiff asserts substantive unconscionability, on the basis he will be “precluded from deposing the vehicle repair technicians who actually performed the work on the Plaintiff’s Vehicle....” (Opp’n Br. at p. 15, lines 1-3.) In support of this position, Plaintiff cites *CVS Health Corporation v. Vividus, LLC* (9th Cir. 2017) 878 F.3d 703, wherein the court states, “Nowhere does the FAA grant an arbitrator the authority to order non-parties to appear at depositions, or the authority to demand that non-parties provide the litigating parties with documents during prehearing discovery. By its own terms, the FAA’s subpoena authority is defined as the power of the arbitration panel to compel non-parties to appear ‘before them.’” (*Id.* at 707.) Plaintiff also cites *Aixtron, Inc. v. Veeco Instruments, Inc.* (2020) 52 Cal.App.5th 360, for the same principle.

Neither *Aixtron* nor *CVS Health* addressed unconscionability. As explained by the court in *Vo v. Technology Credit Union* (2025) 108 Cal.App.5th 632, “the review of an arbitration agreement for unconscionability turns on whether a party has access to adequate discovery to vindicate its claims.” (*Id.* at 646.) “[G]iving the arbitrator authority to expand discovery is one way to ensure adequate discovery is available.” (*Id.* at 646-647.) “When a clause is ambiguous as to whether the arbitrator can order additional discovery and susceptible to an interpretation that either renders it valid or void, the court should select an interpretation that makes the contract valid.” (*Id.* at 647.)

A similar rule applies in the context of the FAA: “Because arbitration is a creation of contract, arbitration agreements may provide arbitrators greater discovery powers with respect to the parties bound by such agreements.” (*CVS Health*, 878 F.3d at 706, fn. 1.)

In *Vo*, the court noted that the arbitration agreement therein incorporated JAMS Rules, which “gives the arbitrator the authority to expand discovery, permitting *Vo* the opportunity to obtain the third party discovery required to adequately arbitrate his claims.” (*Vo v. Technology Credit Union* (2025) 108 Cal.App.5th 632, 647.)

Thereafter, the court explained: “As we note above, the Supreme Court recently clarified that we should not construe discovery provisions defining the scope of an arbitrator’s authority ‘in...a limited way’ and instead should select an interpretation that renders an agreement valid.” (Vo, 108 Cal.App.5th at 647.)

Applying the above, the Vo court held the agreement was not substantively unconscionable, noting “[t]he possibility of a recalcitrant third party witness does not preclude a holding that the discovery available under the provision is adequate and the agreement valid.” (Vo, 108 Cal.App.5th at 648.)

Here, while the Lease Agreement indicates it is governed by the FAA which does not inherently provide arbitrators with the power to compel non-party depositions (*CVS Health*, 878 F.3d at 707), the Agreement also states, “The arbitration shall be administered by the American Arbitration Association, or by any other organization that you may choose, subject to our or a Third Party Beneficiary’s approval. You may get a copy of the rules of the American Arbitration Association by visiting its website at www.adr.org.” (Newman Decl., ¶ 4, Exh. C.)

As Plaintiff has not offered the American Arbitration Association rules or otherwise established the same do not allow arbitrators to expand discovery, Plaintiff has not met his burden of establishing substantive unconscionability. Moreover, as the Lease Agreement permits Plaintiff to choose the arbitration administrator, subject to approval, Plaintiff has not established that he is unable to expand the arbitrator’s authority.

Lastly, Plaintiff argues that “it is unconscionable to condition [the arbitration] process on the consumer posting fees he or she cannot pay.” (*Gutierrez v. Autowest, Inc.* (2003) 114 Cal.App.4th 77, 89.) As clarified by the California Supreme Court in *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 889, a “provision cannot be held unconscionable absent a showing that [the] fees and costs in fact would be unaffordable or would have a substantial deterrent effect in [Plaintiff’s] case.” (*Id.* at 920.) Here,

		Plaintiff offered no evidence as to how fees would be calculated or his ability or inability to pay. In sum, the court finds that Plaintiff has not shown that the Lease Agreement is unconscionable and the court GRANTS the motion to compel arbitration. The court also STAYS this action pending resolution of the parties' arbitration. (Code Civ. Proc., § 1281.4.) Further, the court VACATES the scheduled 11/30/26 case management conference and sets a Status Conference re Status of Arbitration for February 1, 2027 at 9:00 am, in Dept. W8. Plaintiff's counsel SHALL submit a status report regarding the arbitration <u>no later than 10 court days prior</u> to the hearing. RJN: Defendant's Request for Judicial Notice is DENIED, as irrelevant. (See <i>Zucchet v. Galardi</i> (2014) 229 Cal.App.4th 1466, 1474, fn. 5 [court declines to take judicial notice of documents not relevant].) Defendants to give notice.
17	Doe vs. Brown	<u>Motion to Compel re:</u> (1) <u>Requests for Admissions</u> (2) <u>Special Interrogatories</u> (3) <u>Requests for Production of Documents</u> (4) <u>Requests for Admissions</u> The court DENIES each of the discovery motions filed by Defendant JAMAL BROWN against Plaintiff JANE DOE. (ROA 481.) A party may move for an order compelling responses to interrogatories or RFPs "[i]f a party to whom [the discovery requests] are directed fails to serve a timely response." (Code Civ. Proc., §§ 2030.290(b) [interrogatories], 2031.300(b) [RFPs].) To the extent Defendant moves to compel responses to RFAs, the Code of Civil Procedure does not provide for that

relief. Instead, Code of Civil Procedure Section 2033.280(b) provides that where a party to whom requests for admission are directed fails to serve a timely response, the propounding party “may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2033.010).”

Here, there is disputed evidence as to whether Defendant properly mail-served on Plaintiff the discovery requests at issue here. (Compare Bailey Decl. ¶¶ 2-3, ExHs. A-C; Doe Decl., Exhs. C, D, F.)

The court finds insufficient evidence that Defendant served the underlying discovery by non-electronic means in compliance with the Code.

In any event, it is undisputed Plaintiff served responses to the subject discovery while this motion was pending (Doe Decl., ExH. G), rendering **MOOT** the motion to compel responses to special interrogatories, motion to compel responses to RFPs, and the motion to deem facts admitted.

Notably, Defendant did not file any reply papers, which indicates Defendant impliedly concedes the issues of service and mootness.

Defendant to give notice.

Upcoming Discovery Hearings

Plaintiff recently filed discovery motions, which are currently set in Department CM02 on 10/24/26. Specifically, Plaintiff filed the following, which concern three discovery matters:

ROA 566 – “Motion to Deem Matters Admitted (Request for Admission – Set Two)”

		ROA 568 – “Motion to Compel Responses to Special Interrogatories (Set Two) and Requests for Production of Documents (Set Two)” The three motions were erroneously set for an Informal Discovery Conference (IDC). The case is no longer part of the pilot Dedicated Discovery Department Program. (See 5/27/26 Minute Order [“This matter is removed from the IDC program. All discovery matters to be heard by trial judge, The Honorable Sheila Recio.”].) As such, the court re-sets the hearing on the above discovery motions (ROAs 566 and 568) to be heard in Dept. W08 on 12/4/26, at 9:30 am. The court also VACATES the Informal Discovery Conference set for 10/26/26 in Dept. CM02. Plaintiff to give notice.
19	Kinecta Federal Credit Union vs. Vejvoda	<u>Motion for Summary Judgment and/or Adjudication</u> MSJ: The court DENIES Plaintiff KINECTA FEDERAL CREDIT UNION’s unopposed motion for summary judgment against Defendant JACK VEJVODA aka JACK FISHER VEJVODA. MSA: The court GRANTS Plaintiff KINECTA FEDERAL CREDIT UNION’s alternative unopposed motion for summary adjudication against Defendant JACK VEJVODA aka JACK FISHER VEJVODA. The Complaint asserts the following causes of action against Defendant Vejvoda, the only remaining defendant: 1. breach of unsecured written agreement, 2. breach of note, 3. claim and delivery, 4. conversion, 5. possession of personal property, and 6. declaratory relief.

In its motion, Plaintiff only addresses the first and second causes of action. The third, fourth, fifth, and sixth causes of action are not mentioned in the moving papers, including the points and authorities and separate statement.

Because Plaintiff has not met its initial burden with respect to the third, fourth, fifth, and sixth causes of action, the court **DENIES** Plaintiff's motion summary judgment.

1st C/A (breach of unsecured written agreement)

"The standard elements of a claim for breach of contract are: "(1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) damage to plaintiff therefrom. [Citation.]" (*Wall St. Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178.)

Plaintiff proffers evidence showing the following:
Defendant executed the Loan and Security Agreements and Disclosure Statement (the "Agreement") on 8/5/22. (Plaintiff's Separate Statement of Material Facts ("PMF") 1.) Plaintiff is the current holder of the Agreement. (PMF 2.) Pursuant to the Agreement, Defendant promised to make consecutive monthly payments until the debt was paid in full. (PMF 3.) Defendant defaulted under the terms of the Agreement on 5/19/2023. (PMF 4.) Plaintiff has performed all conditions required of it under the Agreement. (PMF 5.) After applying the payment proceeds to the outstanding balance, there remains a balance due and owing from Defendant to Plaintiff in the amount of \$39,299.65 (\$38,418.63 plus interest of \$851.02 through July 5, 2023 plus late fees of \$30.00) plus accruing interest of \$10,152.57, which is calculated at the Agreement percentage rate of 8.24% (per diem rate of \$8.67 for 1,171 days) from 7/6/23 to 9/18/26, the date of hearing on this motion, for a total of \$49,452.22. (PMF 7.)

The court finds that Plaintiff has met its initial burden of establishing each element of the first cause of action.

Defendant did not oppose the motion and thus did not meet his shifted burden.

		As such, summary adjudication in Plaintiff's favor on the first cause of action is GRANTED. <i>2nd C/A (breach of note)</i> The second cause of action alleges Defendant breached a Note, Consumer Credit Disclosure Statement and Security Agreement (the "Note") executed on 8/22/22. Plaintiff proffers evidence showing the following: On 8/22/22, Defendant executed the Note in connection with the purchase of a 2020 Jeep Wrangler, promising to make consecutive monthly payments until paid in full. (PMF 8-11.) Defendant defaulted on the Note on 5/19/23 and the vehicle was repossessed on 12/13/24. (PMF 12-13.) Plaintiff sold the vehicle after proper notice for \$24,750.00, incurring \$1,306.50 in costs associated with the repossession and remarketing of the vehicle. (PMF 13-15.) After applying the net proceeds to the outstanding balance, there remains a deficiency balance due and owing from Defendant to Plaintiff in the amount of \$11,798.75. (PMF 16.) Plaintiff has met its initial burden of establishing each element of the second cause of action. Defendant did not oppose the motion and thus did not meet his shifted burden. Thus, summary adjudication in Plaintiff's favor as to the second causes of action is also GRANTED. Plaintiff to give notice.
20	Balian vs. Arcada Community Association	<u>Motion for Summary Adjudication</u> No Tentative. The parties should be prepared to discuss the following at the hearing:

Trial is currently set for 10/5/26 – i.e., a little over two weeks away.

On 7/29/26 (i.e., 70 calendar days before the 10/5/26 trial), Defendant ARCADA COMMUNITY ASSOCIATION moved ex parte “for an Order Shortening Time on its Motion to Advance or Confirm the September 11, 2026 Hearing Date of its Motion for Summary Adjudication”. (ROA 396.) Not finding good cause, the court DENIED Defendant’s ex parte request to shorten time. (7/29/26 Minute Order.)

Notably, the summary judgment/adjudication statute requires that “[n]otice of the motion and supporting papers **shall be served** on all other parties to the action **at least 81 days before** the time appointed for hearing.” (Code Civ. Proc., § 437c(a)(2), emphasis supplied.) Given the mandatory language, courts do not have authority to shorten the notice period required. (See, e.g., *Urshan v. Musicians’ Credit Union* (2004) 120 Cal.App.4th 758, 764; *McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 115.)

In its ex parte papers, Defendant suggested advancing the hearing on its motion to 8/20/26, a Thursday – despite that the court’s law and motion matters are scheduled on Fridays and trials are usually scheduled for other days of the week, including Thursdays. Also notable, 8/20/26 is a mere 22 days after the 7/29/26 ex parte hearing. If the hearing was advanced as requested to 8/20/26, under the summary judgment/adjudication general briefing schedule, Plaintiffs would have been afforded only 2 days to file and serve their opposing papers. (Code Civ. Proc., § 437c(b)(2); see also, *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1263 [“We agree only two days to prepare a summary judgment motion or an opposition is a woefully inadequate period of time to prepare and present what may well turn out to be the most important series of documents in the entire case.” [quoting and citing *Urshan*, 120 Cal.App.4th at 765-766].)

And although the court has authority to order later briefing if good cause is found, such would deprive Plaintiffs and the court of the usual time afforded to digest summary

		judgment/adjudication motions – a result caused by Defendant’s inaction for the nearly two months between the filing its motion and seeking ex parte relief. (See D’s motion for summary adjudication, filed 5/29/26, and D’s ex parte application, filed 7/28/26.) For some reason, Defendant’s ex parte application repeatedly requested as an alternative that the court “confirm the September 11, 2026 hearing date” for Defendant’s motion. The motion however was not set for 9/11/26. The court also noted that it was not reaching the issue of whether the motion must be heard at all. In response to Defendant’s motion, Plaintiffs ARMEN BALIAN and NAIRY BALIAN filed an objection to the motion, noting that the court has not made a good cause finding permitting the motion to be heard within 30 days of trial. Plaintiffs also argue that the circumstances present do not support a finding of good cause now, given that the motion was filed shortly after the trial was continued for the sole purpose of conducting limited discovery. Plaintiffs did not file opposing papers directed at the merits of Defendant’s motion. Under <i>Robinson v. Woods</i> (2008) 168 Cal.App.4th 1258, cited by Plaintiffs, the court must either decline to hear Defendants’ motion or continue the hearing (and trial) to permit Plaintiffs sufficient time to oppose the motion on the merits.
21	Keller vs. Etheridge	<u>Motion for Summary Adjudication</u> (Continued from 9/11/26 pursuant to Stipulation.) The court DENIES the motion for summary adjudication filed by Defendants and Cross-Complainants KEVIN M. ETHERIDGE, KEVIN M. ETHERIDGE as Trustee of the ETHERIDGE LIVING TRUST Dated September 1, 2020, and CARALI S. ETHERIDGE as Trustee of the ETHERIDGE LIVING TRUST Dated September 1, 2020 (the “Etheridges”).

The Etheridges move for summary adjudication of the first cause of action of the First Amended Complaint (FAC) filed by Plaintiffs and Cross-Defendants ERIC KELLER and TRACY KELLER (the “Kellers”) and the second and third causes of action of their Cross-Complaint against the Kellers.

ISSUES 1-2: 1st C/A (quiet title) of FAC and 2nd C/A (quiet title—implied easement) of Cross-Complaint

The Etheridges contend the undisputed facts establish that they are entitled to an implied easement for subterranean sanitary sewer purposes and maintenance of the same across the real property commonly known as 5930 Paseo De La Cumbre, Yorba Linda, CA 92887 (the “Keller Estate”) for the benefit of the real property owned by the Trust and commonly known as 5940 Paseo Del Retiro, Yorba Linda, CA 92887 (the “Etheridge Estate”). Defendants argue that the undisputed facts establish that, at the time the Etheridge Estate was conveyed to the Etheridges’ predecessors-in-interest, both the Etheridge and Keller Estates were commonly owned, the sewer line running across the Keller Estate for the benefit of the Etheridge Estate was known, permanent, and intended to continue in its existence, and an easement for subterranean sanitary sewer purposes (and the maintenance thereof) is reasonably necessary to the use and benefit of the Etheridge Estate. As such, the Etheridges argue that the existence of this implied easement disposes of the first cause of action of the Kellers’ FAC and the second cause of action of The Etheridges Cross-Complaint.

“[A]n easement conveys rights in or over the land of another.” (*Thorstrom v. Thorstrom* (2011) 196 Cal.App.4th 1406, 1415). An implied reservation of an easement may be inferred “where there is an obvious ongoing use that is reasonably necessary to the enjoyment of the land granted.” (*Id.* at 1419.)

“Section 1104 of the Civil Code provides: ‘A transfer of real property passes all easements attached thereto, and creates in favor thereof an easement to use other real property of the person whose estate is transferred in the

same manner and to the same extent as such property was obviously and permanently used by the person whose estate is transferred, for the benefit thereof, at the time when the transfer was agreed upon or completed.” (*Id.*) An “additional element usually required at common law for the creation of an easement by implication” is “that the easement should be reasonably necessary for the enjoyment of the property conveyed.” (*Id.*)

Thus, an “easement will be implied when, at the time of conveyance of property, the following conditions exist: 1) the owner of property conveys or transfers a portion of that property to another; 2) the owner's prior existing use of the property was of a nature that the parties must have intended or believed that the use would continue; meaning that the existing use must either have been known to the grantor and the grantee, or have been so obviously and apparently permanent that the parties should have known of the use; and 3) the easement is reasonably necessary to the use and benefit of the quasi-dominant tenement. [Citation.]” (*Id.* at 1420.)

“An easement by implication will not be found absent clear evidence that it was intended by the parties.” (*Id.*)

Courts must exercise substantial caution in recognizing implied easements, requiring ““clear evidence”” of the parties’ intent, taking into account ““the circumstances attending the transaction, the particular situation of the parties, and the state of the thing granted.”” (*Romero v. Shih* (2024) 15 Cal.5th 680, 694.)

“Whether an easement arises by implication on a conveyance of real estate depends on the intent of the parties, which must clearly appear in order to sustain an easement by implication.” (*Thorstrom*, 196 Cal.App.4th at 1420).

1. Portion of Property Was Conveyed with Clear Intent that an Easement for Sanitary Purposes Would Continue

The Etheridges argue that the following timeline establishes that, at one time, the easement over the sewer line existed over six properties and that a portion of the property was conveyed to the Etheridge's' successor-in-interest with the intent that the easement would continue, before the property being conveyed to the Etheridge's with said implied easement:

- On 6/29/1979, Steven H. Sanberg, Trustee of the Sanberg Family Trust dated October 23, 1975 ("Sanberg") obtained title to a subdivision that would include both the Keller and Etheridge Properties. (SUMF 2.)
- Sanberg leased his interest in the subdivision to a corporation, Romulus Investments, Inc. (SUMF 3.)
- On 3/4/1980, Romulus/Sandburg recorded an instrument that created an express easement for sanitary sewer purposes. (SUMF 4 & Mvg. Sinclair Decl., Exh. 7.) The declaration establishing an easement states: "It is the desire of the owners of said parcel hereinabove to establish an exclusive easement for sanitary sewer purposes over that portion of said parcel 1 described as follows: A portion of lot 9 of tract no 10130 in the City of Yorba Linda, as recorded in Book 457 Pages 34 to 38 inclusive of miscellaneous maps records of Orange County, California, the Centerline of Said 10 foot wide easement being described as follows: Beginning at a point of the northerly line of Lot 9 said point being 5.00 feet southwesterly as measured at right angles from the Northeasterly line of said Lot 9, thence 30', 22' 52" east parallel to said Southeasterly Line 135.00 feet, thence south 11" 39' 30" West 44.00 feet to the southerly line of Lot 9 and the termination of said 10 foot easement." (Mvg. Sinclair Decl., Exh. 7 at p. 1.)
- In 1981, Mark III Homes, Inc. obtained a construction loan from First Interstate. (SUMF 6). Mark III Homes, Inc. eventually defaulted on the loan and in April of 1983, First Interstate obtained

the interest in the subdivision via a trustee's sale. (SUMF 7.)

- On 2/27/1984, First Interstate executed a grant deed conveying five of the six lots of the subdivision, including the Keller Property (but not the Etheridge Property) to J.C. Manning. (SUMF 8.)
- On 3/1/1984, First Interstate executed a grant deed, which conveyed the Etheridge Property to the Doetkotts. (SUMF 13; Mvg. Sinclair Decl., Exh. 12.)
- Defendants contend that by the time that the Doetkotts bought the Etheridge Property, someone had already built the sewer line running from the Etheridge Property to the Keller Property. (SUMF 14-16.)
- In 1985, John and Claire Murphy purchased the Keller Property. (SUMF 17). In 1992, the Murphys decided to install a swimming pool in the backyard. (SUMF 53.) On 3/5/1992, the pool contractor whom the Murphys had hired (Richard Sikkenga of Coast Line Pools) pulled a permit to install the swimming pool from the City. (SSUF 54.) Fifteen days later (on 3/20/1992), Mr. Sikkenga pulled a permit from the City to "Repair 30' ft. Sewer Line" from the City. (SSUF 55.) Although Mr. Sikkenga did not specifically remember the job for the Murphys by the time he was deposed in May 2025, he testified at deposition that he was not a licensed plumber, and that the only reason he would have pulled a permit to repair a sewer line would have been if he had accidentally damaged the line for the Etheridge Estate while digging up the Murphys' new pool. (SSUF 56.)
- In March 1994, First Interstate gave a deed quitclaiming to the Doetkotts a sanitary sewer easement in the exact same location provided in the declaration from March 1980. (SSUF 18.) The quitclaim recited that no documentary transfer tax was owed, as it was a "correction deed." (SSUF 19; Mvg. Sinclair Decl., Exh. 16.)

Much of these arguments are based on conclusions and speculations drawn from recorded documents and/or testimony of persons who do not have a memory of the specific events. While a court may take judicial notice of the existence or legal effect of a recorded document, the factual representations contained within that document are disputable. (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265).

The Etheridges do not offer any direct evidence from persons with direct personal knowledge and/or expert analysis to corroborate that their conclusions and interpretations of the factual recitals in these recorded documents should be accepted. Even if the court were to accept the Etheridges' version of events, at the very least, a triable issue of fact exists regarding whether or not the parties pre-dating the Etheridges intended to convey the easement over the specific sewer line that exists today under the Keller Property.

First, for example, First Interstate executed two grant deeds—one conveying five lots to J.C. Manning and one lot to the Doetkotts. (Sinclar Decl., Exs. 10 & 12). Neither of these grant deeds expressly identify a sewer easement. Without an express transfer of the sewer easement in these grant deeds, a triable issue of fact exists regarding whether or not the 3/4/1980 easement (Mvg. Sinclar Decl., Exh. 7) was terminated or not.

Second, the Etheridges argue that when the Doetkotts bought the Etheridge Property on 3/1/1984, there was already a sewer line running from the Etheridge Property to the Keller Property. However, the evidence that the Etheridges provide is purportedly a proposed residence plan by the Doetkotts which contain notes that refer to "exist. Sewer stub" and "sewe conn. @ n.e. corner..." (Mvg. Sinclair Decl., Exh. 13.) The dates on the building plans state "engineering approved" and/or "planning approved" on 7/9/1984—four months after the Doetkotts purchased the property. The building plans do not clearly delineate when the purported sewer line was built and, more importantly, the specific location of the purported sewer line. Building plans dated after a purchase of land do not undisputedly show that the sewer line that exists today

was already built when the Doetkotts purchased the property.

Third, the Etheridges also argue that in 1992, when John and Claire Murphy decided to install a swimming pool on the Keller Property, they knew about the sewer line under the Keller Property. The evidence that the Etheridges offer is that on 3/5/1992, the pool contractor whom the Murphys had hired (Richard Sikkenga of Coast Line Pools) pulled a permit to install the swimming pool from the City. (SSUF 54; Mvg. Sinclair Decl., Exh. 17.) Fifteen days later (on 3/20/1992), Mr. Sikkenga pulled a permit from the City to “Repair 30’ ft. Sewer Line” from the City. (SSUF 55; Mv. Sinclair Decl., Exh. 18.) Exhibit 18 suggests that an application for a plumbing permit was made to repair a 30 feet sewer line on the Murphy’s property. Exhibit 18 does not expressly identify the location of the sewer line and/or establish that the sewer line is in the same location identified in the easement identified in the 3/4/1980 Romulus/Sandburg declaration of easement (Mvg. Sinclair Decl., Exh 7.) The pool contractor, Mr. Sirkkenga, specifically testified that he did not remember the job during his deposition. (Opp’n, Exh. 12 at 16:5-16.) His testimony that the only reason he would have pulled a permit to repair a sewer line would have been if he had accidentally damaged the line for the Etheridge Estate while digging up the Murphys’ new pool would be a hypothetical speculation.

The circumstantial evidence that the Etheridges offer surrounding the construction of the pool on the Keller Property show questions of triable facts, rather than establish an undisputed material fact. Assuming that the 1980 declaration of easement was in fact transferred with the Etheridge Property when First Interstate sold it to the Doetkotts, the Etheridges allege that during the pool construction, “the sewer line was rerouted so as not to interfere with the Murphys’ planned swimming pool.” (Cross-Complaint, ¶ 31.) In March 1994, when First Interstate gave a deed quitclaiming to the Doetkotts a sanitary sewer easement, it was in the exact same location provided in the declaration from March 1980. (Mvg. Sinclair Decl., Exh. 16; Compare with Opp’n, Exh. 9, 20:23-21:23, 11:20-6, 22:13-16, Opp’n, Exh. 9. at 40:15-41:11,

80:1-10.) As such, if the sewer line was rerouted in 1992, when the swimming pool was built, a triable issue of material fact exists whether the 1980 easement, if it did transfer, covered the same location as the rerouted sewer line. Notably missing from the moving papers is any expert opinion that analyzed and surveyed where the 1980 easement covered of the Keller Property and where the now-existing, allegedly rerouted sewer line covered and whether the easement location overlaps with the now existing sewer line.

For these reasons, triable issues of material fact remain regarding whether or not an 1980 easement for sanitary purposes was continued or terminated when First Interstate deeded the property to the Doetkotts, triable issues of fact exist regarding whether or not a sewer line already existed under the Keller Property when the Doetkotts purchased the Etheridge Property and, if yes, where that sewer line was located in the Keller Property, and triable issues of fact exist that, even if the 1980 easement continued, whether or not the easement covers the same location as the now purportedly re-routed sewer line on the Keller Property.

2. Is Easement Reasonably Necessary to the Use and Benefit of the Etheridge Estate?

The last element of an implied easement requires a showing that the easement is reasonably necessary for the use of the Etheridge's property.

In *Leonard v. Haydon* (1980) 110 Cal.App.3d 263, the court found that the following jury instruction on "reasonably necessary" was appropriate: "In determining whether the easement is reasonably necessary to the use and benefit of the Haydons, you can consider whether the Haydons can at a reasonable cost create a substitute on their own property." (*Id.* at 268.) The appellate court held that this instruction did not require the cost issue to be determinative of "reasonably necessary"—"only that it was a factor they could consider in respect of the reasonable necessity of the easement." (*Id.*) Where there was a conflict of evidence as to whether the easement was

reasonably necessary and there was dispute about the cost of an alternate road, the jury could consider this as an element of “reasonably necessary.” (*Id.*)

“Mere convenience” is insufficient to establish reasonable necessity. (*Id.* at 269). “The test of necessity is whether the party claiming the right can, at reasonable cost, create a substitute on his own estate.” (*Id.*)

Whether an implied easement must be granted and/or whether or not the easement is reasonably necessary to the beneficial enjoyment of the land are questions of fact. (*Id.*)

Here, there are questions of material fact as to whether or not the sewer line is reasonably necessary for the beneficial use and enjoyment of the Etheridges’ property. The Kellers have offered evidence that the sewer line is deteriorated, malfunctioning, and lacks the proper slope required for a gravity-flow sewer system. (AMF, Nos. 11-18, Opp’n, Exh. 10 at 33:22-34:08, 34:14-35:3, 36:2-7, 44:1-15.) The line currently runs adjacent to the Kellers’ swimming pool, hardscape, decking, utilities, and other improvements. (AMF No. 17; Opp’n, Exh. 4 [Photograph of line in yellow]; Opp’n, Exh. 9, 28:1-16, 29:3-16.) Repairing the line would require City approval before the sewer line would be permitted and would require excavation of the Keller’s backyard, including the areas containing the pool, hardscape, a steep slope, utilities, and major electrical lines. (AMF Nos. 11-18; Opp’n, Exhs. 5, 7, 8 at 15:7-12, 19:23-11. 27:6-18, 85:23-86:8, 9 at 35:18-36:17, and 11 at 16:23-17:25, 21:15-21:25.)

A public sewer main exists directly in front of the Etheridge Property (AMF 19). According to the Water District of Yorba Linda, the sewer main that services the Etheridge Property could be used for re-routing the sewer line onto the Etheridge Property (AMF 20; Opp’n, Exh. 8 at 18:11-24-19:22. 20:15-19, 84:1-25.) The Etheridges’ daughter contacted the Yorba Linda Water District stating there was a defective slope to the sewer lateral, and requested they determine whether a re-routing of the Etheridge Sewer Line was possible (AMF 21, Opp’n, Exh. 8 at 18:11-24-19:22. 20:15-19, 84:1-25.) The Yorba Linda Water District

determined that it was feasible to re-route the Etheridge sewer line onto their owner property (AMF 22, Opp'n, Exh. 8 at 18:11-24:19:22. 20:15-19, 84:1-25, Opp. Ex. 17.)

These show triable issues of material fact regarding whether or not the alleged easement is reasonably necessary. Triable issues of fact exist regarding the location of the easement and the extent of the easement. Triable issues of fact also exist as to whether or not, even if an easement existed for "sanitary purposes," whether such easement only extended to allowing for the passage of sewage, or if the easement extended to granting future access to the Kellers' property for excavation, repair, replacement, maintenance, disruption, and to the potential damage of the Kellers' pool, hardscape, decks, and utilities. The extent of the easement and what is reasonably necessary for the Etheridges' enjoyment of their property is a question of fact, with the alternate rerouting of the sewer line into the public line being a cost that a trier of fact may consider.

For these reasons, summary adjudication of Issues 1 and 2 and the existence of an implied easement are DENIED.

Issues 3-4: 1st C/A (quiet title) of FAC and 3rd C/A (quiet title—prescriptive easement) of Cross-Complaint

The Etheridges argue alternatively that the undisputed facts establish a prescriptive easement, which disposes of the first cause of action of the Kellers' FAC and the third cause of action of the Etheridges' Cross-Complaint.

A prescriptive easement requires open and notorious, continuous and uninterrupted use, hostile to the true owner, under claim of right, for at least five years. (*Field-Escandon v. Demann* (1988) 204Cal.App.3d 228.)

"In order to establish the existence of a prescriptive easement on his property, the landowner must be aware or have notice of its existence, with the resulting opportunity to take action to prevent its creation due to passage of time. Notice may be actual or constructive." (*Id.* at 235-236.)

“Where the pipes or other conduits as to which easements have been claimed were buried underground and their presence was not physically apparent throughout the prescriptive period, the courts have generally concluded that there was insufficient notoriety of the user to permit prescription to run against the servient estate. This result has often been reached where there was an absence of substantial evidence that the servient parties had any notice or information of the existence of the facility and its user.” (*Id.* at 236.) “In order to find constructive notice arising out of the sewer permit and ... map, there must be some evidence of “actual notice of circumstances sufficient to put a prudent man upon inquiry as to a particular fact.” (*Id.*)

“The question then becomes whether there was substantial evidence of other circumstances which would put a prudent person on inquiry as to the existence of a sewer line on the property.” (*Id.* at 237.)

There are triable issues of material fact as to whether or not the owners of the Keller Property (the Murphys and the Kellers) had actual or constructive notice of the purported easement. The Etheridges rely on facts relating to the pool construction to impute knowledge on the Murphys that the sewer line existed in 1992. As the court explained above, those facts rely on the testimony of a person who did not remember any facts about the pool construction. Further, the facts in the recorded documents relating to the permits pulled at the time are not properly authenticated. There is insufficient evidence to expressly tie knowledge of the sewer line onto the Murphys.

Further, the Etheridges claim that Tracy Keller knew there was a sewer line under the Keller property because in 2023 Keller specifically noticed “a drain right smack in the middle of our sidewalk, and I always thought that was weird.” (SUMF No. 62.) The Etheridges argue that because Keller chose not to investigate further does not render the notice less effective. However, that statement by Keller, at most, raises a question of material fact. A jury could reasonably infer what the Etheridges suggest—that the presence of the drain should have caused Keller to

investigate further. A jury may also reasonably infer that merely seeing a drain in the sidewalk was insufficient to constitute actual or constructive notice.

The Kellers did not categorically admit to knowing about the sewer line or the extent of any alleged easement. The recorded instruments related to the Keller Property do not identify any easements. The title company did not identify any easements when the Kellers purchased the Keller Property.

Taken as a whole, all of these inconsistent facts raise triable issues of material fact as to constructive or actual notice.

Summary adjudication is therefore DENIED as to Issues 3 and 4 and the existence of a prescriptive easement.

Evidentiary Rulings

Pending Demurrer: The Kellers object to the court's considering the merits of this motion given their pending demurrer on the Cross-Complaint. The Kellers offer no authority that suggests that the court cannot rule on a pending motion for summary judgment when a demurrer is pending. The court overrules this objection and has considered this motion on the merits.

RJN: The Etheridges filed a request for judicial notice and the Kellers have filed objections to that request for judicial notice. The court rules on both here.

The Etheridges' request for judicial notice is granted in part as to Exhibits 1, 2, 3, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14, 15, 16, 17, and 18. The court takes judicial notice of the fact that these documents were recorded and the legal effect of the recorded documents. The court does not take judicial notice of the truth of the facts of the matters stated in the documents.

The Kellers' request for judicial notice is GRANTED in part as to Exhibits 1-7. The court will take judicial notice of the fact that these documents were recorded/filed and the

		legal effect of the recorded documents. The court will not take judicial notice of the truth of the facts of the matters stated in the documents. <u>Sinclair Declaration:</u> The Kellers object to the declaration of Kevin Sinclair. The court rules on these objections as follows: The court SUSTAINS the objections as to the use of the phrase “true and correct” in paragraphs 1-4 an 6-19 of Sinclair’s declaration. The objections are OVERRULED as to the remainder of Sinclair’s testimony. The court admits Exhibits 1-3 and 5-18, but only for the fact that these documents were recorded and the legal effect, if any. The court does not admit the truthfulness of the matters asserted in these documents. The court also admits Exhibits 4, 19, and 20. <u>Reply:</u> The Etheridges object to the evidence proffered by Plaintiffs in their opposition to the motion. The court rules on these objections as follows: SUSTAIN: 2, 6, 7, 8, 9, 10, 11, 15, 16, 21, 24 OVERRULE: 1, Exh. A, 3, 4, 5, 12, 13, 14, 17, 18, 19, 20, 22, 23, 25, 26, 27 Moving Parties to give notice.